

HOUSE BILL 1286

By Hill

AN ACT to amend Tennessee Code Annotated, Title 34, Chapter 6, Part 37; Title 38; Title 50; Title 56; Title 62, Chapter 5; Title 62, Chapter 6 and Title 68, relative to burial.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 4, is amended by adding the following as a new section:

(a) If the person or government agency assuming custody of a body for the purposes of burial does not request an autopsy pursuant to § 68-4-111, or that the body be embalmed, then the person or government agency must ensure that the body is buried within forty-eight (48) hours from the time when the person or government agency waives the ability to request an autopsy or embalming of the body.

(b) Subsection (a) does not apply when an autopsy may be requested in accordance with the Post-Mortem Examination Act, compiled in title 38, chapter 7, or another law that allows this state or a political subdivision of this state to request an autopsy due to the circumstances surrounding the death of the decedent.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.